

Manoj v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 January 2018 · Writ - C No. 1867 of 2018 · **Writ allowed; provisional assessment notice quashed; fresh assessment directed.**

HEADNOTE

A Division Bench quashed a Rs. 92,296 provisional assessment notice that neither specified a date and time for hearing under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005, nor disclosed the basis of the demand. The licensee was directed to issue a fresh provisional assessment, hear the consumer's objections, and pass a reasoned final order in light of *Ashok Kumar v. State of U.P.*

FACTUAL SUMMARY

The petitioner challenged a provisional assessment notice dated 18 November 2017 for Rs. 92,296 and the recovery certificate that followed. He said he never received the notice and learnt of it only after recovery, so he could not reply and the licensee treated the assessment as final. The notice, counsel submitted, neither fixed a date and time for hearing under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005, nor disclosed the basis of the demand.

REUSABLE CONSTRUCTIONS

1. A provisional assessment notice under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 must itself specify a date and time for hearing; a notice that omits that fixture is not in accordance with the Code and is liable to be quashed. ¶ 3-4, 6-8
2. A provisional assessment notice that does not disclose the basis of the assessed amount fails Clause 6.8(b); the licensee must issue a fresh notice, consider objections, hear the consumer, and give reasons meeting those objections. ¶ 6-8

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment notice — hearing date and basis

HOLDING

Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 requires adequate opportunity on a provisional assessment, including a date and time for hearing specified in the notice itself under Clause 6.8(b)(1) and disclosure of the basis of the demand. The notice dated 18.11.2017 did neither and was quashed. Respondents were directed to prepare and serve a fresh provisional assessment; the final order is to follow after considering objections, opportunity of hearing, and reasons meeting those objections, in light of *Ashok Kumar v. State of U.P.* ¶ 3-4, 6-8

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660 (DB)			5, 8	Referred